

Trustee account

Appearance is required for continued hearing on trustee account.

Clarification is needed: objections to a purported amended account were filed. No amended account has been filed or set for hearing.

Missing notice of hearing re original trustee account. Missing service of notice of hearing.

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

Ex parte application to advance and adjudicate petition for instructions

Appearance is required for hearing on ex parte application to advance and adjudicate petition for instructions.

20. S-PR-0014170 In Re the Estate of Nelson, Shirley J.

Appearance is required for hearing on amended petition to determine succession to primary residence.

Missing notice of hearing for amended petition. Missing 15 days' service of notice of hearing for amended petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing required allegations at ¶ 9a(3)–(4) (registered domestic partner) and (7)–(8) (issue of predeceased child(ren)).

Missing Attachment 11, including legal property description, APN, and facts showing the residence was decedent's primary residence.